

WELLS FARGO BANK, N.A. v DAVIS

23CF14230

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This action seeks breach of contract and common counts damages based on alleged nonpayment of a credit card account. Plaintiff served Requests for Admission on February 6, 2024; defendant has never responded.

If the propounding party believes that the responses to Requests for Admission are deficient in some respect or that any objections are without merit or are unaccompanied by a proper response, they may make a motion to compel further responses under Code of Civil Procedure (CCP) § 2033.290. (See *Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 636; *Tobin v. Oris* (1992) 3 Cal.App.4th 814, 829, fn. 25.) Appropriate sanctions may include an order deeming matters admitted (CCP Section 2033.290(e)).

Defendant failed to timely respond to the requests for admission, respond to plaintiff's meet-and-confer efforts, or respond to the present motion. The Court finds this wanton disregard for the discovery process warrants the sanction of deeming all requests admitted.

Based on the foregoing, Plaintiff's Motion to Deem Matters Admitted is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court intends to sign the Order submitted by plaintiff.

JOHN A. VOS, TRUSTEE OF THE VOS FAMILY TRUST

DATED 8/31/2011 v EVANS

23CV46959

**DEFENDANTS' MOTION TO SET ASIDE DEFAULT;
PLAINTIFFS' MOTION FOR INTERLOCUTORY JUDGMENT OF
PARTITION AND APPOINTMENT OF REFEREE**

This action seeks partition of the real property located at 10777 Walker Trail, Lost City, CA 95222, Calaveras County Assessor's Parcel Numbers 050-008-053-000, 050-021-018-000, 050-007-008-000, 050-007-009-000, 050-007-010-000, 050-007-011-000 (the "Property"). Defendants move to set aside their defaults; Plaintiffs seek an interlocutory judgment of partition and appointment of a referee.

DEFENDANT'S MOTION TO SET ASIDE DEFAULT:

Defendants seek to set aside their defaults pursuant to California Code of Civil Procedure ("CCP") Sections 473 (b) and 473.5 based on inadvertence, mistake, surprise, and/or excusable neglect, citing communications between counsel that reference ongoing settlement discussions and statements that are open to interpretation as reflecting a nascent agreement to set aside defaults if further proceedings proved necessary.

CCP provisions authorize the court to set aside a default or default judgment on such terms as may be just and to allow the defendant to defend the action on a finding that the defendant's motion to set aside the default or default judgment was made within the period permitted by CCP § 473.5(a), and that defendant's lack of actual notice of the action in time to defend was not caused by his or her avoidance of service of summons or inexcusable neglect. Here, the present motion was filed roughly 4 ½ months after the defaults were entered, therefore in a timely manner. The Court may, on any just terms, vacate the entry of default that resulted from mistake, inadvertence, surprise, or neglect, if that error was excusable. (*Zemora v Clayborn Contracting Group* (2002) 28 Cal 4th 249, 258.) Further, the relief becomes mandatory when attributable to an attorney's mistake, inadvertence, surprise, or neglect. (*Lorenz v Commercial Acceptance Insurance* (1995) 40 CalApp4th 981, 989-990; the party is entitled to this relief even if the attorney's actions were inexcusable (*Rodriguez v Brill* (2015) 234 CalApp715, 723). Here, attorney Robert Enos' declaration accepts responsibility and provides that his actions were excusable.

Based on the foregoing, Defendants' Motion to Set Aside Default is **GRANTED** and the proposed Answer and Cross-Complaint are ordered filed.